

HOUSE No. 3398

The Commonwealth of Massachusetts

PRESENTED BY:

Tram T. Nguyen and Dawne Shand

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote diversity on public boards and commissions.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>1/9/2025</i>
<i>Dawne Shand</i>	<i>1st Essex</i>	<i>1/9/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>12/2/2025</i>
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>11/26/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>8/6/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>4/3/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/6/2025</i>

HOUSE No. 3398

By Representatives Nguyen of Andover and Shand of Newburyport, a petition (accompanied by bill, House, No. 3398) of Tram T. Nguyen, Dawne Shand and others for legislation to promote diversity on public boards and commissions. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3095 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote diversity on public boards and commissions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Definitions

2 “Diverse”, an individual who self-identifies in one or more of the following categories:
3 Female, Underrepresented Minority, or LGBTQ+.

4 “Female”, an individual who self-identifies her gender as female, without regard to the
5 individual’s designated sex at birth.

6 “Underrepresented Minority”, an individual who self-identifies as one or more of the
7 following: Black or African American, Hispanic or Latinx, Asian, Native American, Alaska
8 Native, Native Hawaiian, Pacific Islander, or two or more races or ethnicities, or such other
9 similar non-white categories as reported in the Census Data.

“LGBTQ+”, an individual who self-identifies as any of the following: lesbian, gay, bisexual, transgender, or as a member of the queer community.

“Census Data”, the Decennial U.S. Census, performed by the U.S. Census Bureau every ten years as mandated by Article I, Section 2 of the U.S. Constitution.

Section 2. (a) Every appointive board or commission of the state established by the Code, if not otherwise provided by law, shall endeavor to have, or explain why it does not have, (1) at least fifty percent members who self-identify as Female, and (2) at least thirty-percent members who self-identify as an Underrepresented Minority or as LGBTQ+. For purposes of this section, these percentages are met where the appointment of one additional Diverse member would cause the board or commission to have a Diverse composition greater than the percentages required herein.

(b) Not later than 120 days after the release of new Census Data, the governor’s office shall amend the percentages in Section 2(a) where necessary to meet the following criteria:

(1) The percentage in Section 2(a)(1) shall reflect the female population in Massachusetts, as reported by the Census Data.

(2) The percentage in Section 2(a)(2) shall reflect the percentage population in Massachusetts of Underrepresented Minorities, as reported in the Census Data, plus the percentage population of LGBTQ+, as reported by the Census Data.

Section 3. Each person responsible for appointing members to a board or commission shall endeavor to ensure that, to the fullest extent possible, the composition of the board or commission reflects the diversity goals set forth in Section 2. Appointing authorities shall make a

focused effort to appoint Diverse members to all boards and commissions, including but not limited to, developing and implementing a plan to attract and recruit Diverse members; and working with community-based and professional organizations with large networks of Diverse individuals.

Section 4. (a) To track and measure progress, each public board and commission shall identify and report to the governor's office at least once per fiscal year:

(1) the total number of current members;

(2) the total number of current members who self-identify as Female;

(3) the total number of current members who self-identify as an Underrepresented Minority or LGBTQ+; and

(4) the total number of current members who self-identify as Female and as an Underrepresented Minority or LGBTQ+.

(b) In addition, each appointing authority shall make reasonable efforts to identify and report to the governor's office at least once per fiscal year:

(1) the total number of persons who applied or were nominated for appointment to each public board or commission during the time period covered by the report;

(2) the total number of Females who applied or were nominated for appointment to each public board or commission during the time period covered by the report;

49 (3) the total number of Underrepresented Minorities and LGBTQ+ individuals who
50 applied or were nominated for appointment to each public board or commission during the time
51 period covered by the report; and

52 (4) the total number of Females who are also Underrepresented Minorities and LGBTQ+
53 who applied or were nominated for appointment to each public board or commission during the
54 time period covered by the report.

55 (c) The governor's office shall publish at least once per fiscal year a report that separately
56 identifies for each public board and commission the data collected and reported by such board
57 and appointing authority pursuant to paragraphs (a) and (b) in this Section. If any board or
58 commission does not meet the diversity goals outlined in Section 2, the appointing authority
59 shall include an explanation for why the goals were not met and describe the efforts, if any, by
60 the appointing authority to increase the number of Diverse members on the board or commission.

61 (d) Any demographic data disclosed or released pursuant to this section shall disclose
62 only aggregated statistical data and shall not identify an individual applicant, nominee or
63 appointed board member or commissioner.